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WHITE, J., dissenting

On which side of the line other Presidential functions would fall need not be decided in this case.

The majority opinion suggests a variant of this argument. It argues, not that every Presidential function has this character, but that distinguishing the particular functions involved in any given case would be "difficult." *Ante*, at 756.³⁴ Even if this were true, it would not necessarily follow that the President is entitled to absolute immunity: That would still depend on whether, in those unclear instances, it is likely to be the case that one of the functions implicated deserves the protection of absolute immunity. In this particular case, I see no such function.³⁵

I do not believe that subjecting the President to a *Bivens* action would create separation-of-powers problems or "public policy" problems different from those involved in subjecting the President to a statutory cause of action.³⁶ Relying upon

³⁴ The majority also seems to believe that by "function" the Court has in the past referred to "subjective purpose." See *ante*, at 756 ("an inquiry into the President's motives could not be avoided under the . . . 'functional' theory . . ."). I do not read our cases that way. In *Stump v. Sparkman*, 435 U. S. 349, 362 (1978), we held that the factors determining whether a judge's act was a "judicial action" entitled to absolute immunity "relate to the nature of the act itself, *i. e.*, whether it is a function normally performed by a judge, and to the expectations of the parties." Neither of these factors required any analysis of the purpose the judge may have had in carrying out the particular action. Similarly in *Butz v. Economou*, 438 U. S., at 512-516, when we determined that certain executive functions were entitled to absolute immunity because they shared "enough of the characteristics of the judicial process," we looked to objective qualities and not subjective purpose.

³⁵ The majority seems to suggest that responsibility for governmental reorganizations is one such function. *Ante*, at 756. I fail to see why this should be so.

³⁶ Although our conclusions differ, the majority opinion reflects a similar view as to the relationship between the two sources of the causes of action in this case: It does not believe it necessary to differentiate in its own analysis between the statutory and constitutional causes of action.